



R-834

STATE OF HAWAII
BUREAU OF CONVEYANCES
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/s/ NICKI ANN THOMPSON
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G. Stephen Elisha, Esq.
2145 Wells Street, Suite 204
Wailuku, Hawaii 96793

TOTAL NUMBER OF PAGES: 5

\\BICONDOWa Hale o Makena\Second Amendment to Declaration.doc

T.M.K.: (2) 2-1-7:101

Condominium Map No. 3192

**SECOND AMENDMENT TO THE DECLARATION OF
CONDOMINIUM PROPERTY REGIME OF NA HALE O MAKENA**

WHEREAS, the Declaration of Condominium Property Regime of Na Hale O Makena dated November 20, 2000, was recorded in the Bureau of Conveyances of the State of Hawaii as Document No. 2000-166795 ("Declaration"), together with Condominium Map No. 3192 and any amendments thereto; and

WHEREAS, the Declaration was amended by that certain Amendment to the Declaration of Condominium Property Regime of Na Hale O Makena dated August 17, 2007, and recorded on December 26, 2007 in said Bureau of Conveyances as Document No. 2007-221527; and

WHEREAS, said Amendment caused the Association of Apartment Owners of Na Hale O Makena to adopt and/or "opt-in" to Hawaii Revised Statutes §514B; and

WHEREAS, on May 28, 2008, it was resolved by the Board of Directors of the Association of Apartment Owners of Na Hale O Makena to further amend said Declaration in order to clarify and expand restrictions on various forms of short term use and occupancy of apartments at Na Hale O Makena that are prohibited, including a specific prohibition against fractional or shared ownership programs; and

WHEREAS, Hawaii Revised Statutes §514B-32(11) requires approval of sixty-seven percent (67%) of the common interest to amend the Declaration; and

WHEREAS, the Board of Directors of the Association of Apartment Owners of Na Hale O Makena have put to vote and received written approval by more than sixty-seven percent (67%) of the common interest to amend said Declaration;

NOW, THEREFORE, the Declaration, as amended and/or restated, is hereby further amended by deleting Section 8(a) in its entirety and substitutes in its place the following:

"(a) Each Apartment shall be occupied and used for residential purposes only. An apartment owner may rent his Apartment to any third party for a period of not less than one hundred eighty (180) consecutive days, provided that the rental agreement shall be in writing and a copy thereof shall be provided to the managing agent prior to occupancy. The owner shall provide each rental tenant with a copy of the rules and regulations and Bylaws for the tenant's review. An owner who rents his Apartment shall at all times remain primarily and severally liable to all other apartment owners and to the association for any failure on the part of such owner's tenant(s) to observe and comply with all provisions of this Declaration, the Bylaws, the rules and regulations and all other applicable laws. In no event shall any Apartment or any interest therein be sold, transferred, conveyed, leased, occupied, rented or used for or in connection with any time-sharing purpose, under any time-sharing plan, arrangement or program, or pursuant to any "secured ownership investment" or "fractional ownership" program, including without limitation any so-called "vacation license", "travel club membership", "shared ownership company" or "interval ownership" arrangement. Any use of an Apartment by any person other than the owner may only occur without any consideration being paid for such use, be it financial, in-kind, contra or any other form of consideration. The term "time-sharing" as used herein shall mean any plan, program or arrangement which is a "time share plan" as defined by Hawaii Revised Statutes Section 514E-1, as amended or any successor statute. No Apartment may be used as a rooming house, for bed and breakfast purposes, or for the carrying on of any business, trade or profession except for rentals as permitted herein and except for incidental home work which (i) does not involve any outside employees working in the Apartment, and (ii) is not visible from the outside of the Apartment."

EXCEPT AS HEREIN AMENDED, all of the remaining pages in said Declaration, as amended, are hereby ratified and confirmed, and shall remain in full force and effect.

The parties hereto agree that this instrument may be executed in counterparts, each of which shall be deemed an original, and said counterparts shall together constitute one and the same agreement, binding all of the parties hereto, notwithstanding all of the parties are not signatory to the original or the same counterparts. For all purposes, including, without limitation, recordation, filing and delivery of this instrument, duplicate unexecuted and unacknowledged pages of the counterparts may be discarded and the remaining pages assembled as one document.

IN WITNESS WHEREOF, the Owners have executed these presents on
FEB 19 2009.

ASSOCIATION OF APARTMENT
OWNERS OF NA HALE O MAKENA, a
Hawaii nonprofit corporation

By: 
Print Name: Ronald P. Haak
Its President

By: 
Print Name: Kent R. Smith
Its _____

STATE OF HAWAII

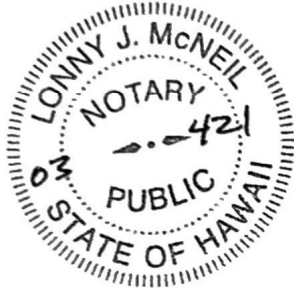
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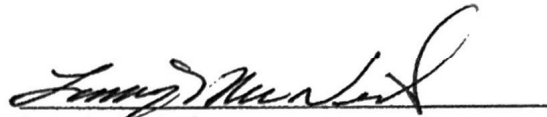
) SS.

COUNTY OF MAUI

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This 5-page SECOND AMENDMENT TO THE DECLARATION OF CONDOMINIUM PROPERTY REGIME OF NA HALE O MAKENA dated FEB 19 2009, was subscribed and sworn to before me, LONNY J. McNEIL, on FEB 19 2009 in the Second Circuit of the State of Hawaii, by RONALD P. HAAK, personally known to me (or proved to me on the basis of satisfactory evidence) to be the person(s) whose name(s) is/are subscribed to the within instrument and acknowledged to me that he/she/they executed the same in his/her/their authorized capacity(ies), and that by his/her/their signature(s) on the instrument the person(s), or the entity upon behalf of which the person(s) acted, executed the instrument.




(notary's signature)

(print/type name of notary)

Notary Public, in and for said County and State.

My commission expires:

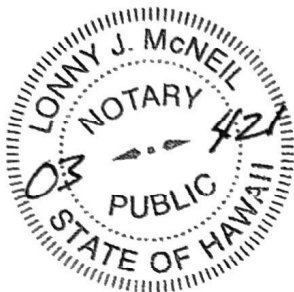
**LONNY J. McNEIL
NOTARY PUBLIC
STATE OF HAWAII
MY COMMISSION EXPIRES
7/27/2011**

STATE OF HAWAII

)
) SS.
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COUNTY OF MAUI

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(notary's signature)

(print/type name of notary)

Notary Public, in and for said County and State.

My commission expires:

**LONNY J. McNEIL
NOTARY PUBLIC
STATE OF HAWAII
MY COMMISSION EXPIRES
7/27/2011**